



ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G.YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBEASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

The Management of City Builders, Inc. represented by its)
General Manager, Omar Hamzi, of the City of Monrovia,)
LiberiaMovant)

Versus)

Motion to Dismiss
Appeal)

The Management of the Ammeton Construction)
represented by its Manager/Managing Director/Principal)
Promoter/Owner, Anthony, to be identified, together with)
is deputies and all those operating under the said)
authority, also of the City of Monrovia, Montserrado)
County, Liberia Respondent)

GROWING OUT OF THE CASE:)

The Management of the Ammeton Construction,)
represented by its Manager/Managing Director/Principal)
Promoter/Owner, Anthony to be identified, together with)
his deputies and all those operating under the said)
Authority, also of the City of Monrovia, Montserrado)
County, Liberia Appellant)

Versus)

Appeal)

The Management of City Builders, Inc. represented by its)
General Manager, Omar Hamzi, of the City of Monrovia)
Liberia Appellee)

GROWING OUT OF THE CASE:)

The Management of City Builders, Inc. represented by its)
General Manager, Omar Hamzi of the City of Monrovia,)
Liberia Movant)

Versus	)	
	)	Action of Debt
	)	
The Management of the Ammeton Construction	)	
represented by its Manager/Managing Director/Principal	)	
Promoter/Owner, Anthony, to be identified, together with	)	
his deputies and all those operating under the said	)	
Authority, also of the City of Monrovia, Montserrado	)	
County, Liberia Respondent	)	
	)	

Heard: November 3, 2021

Decided: January 27, 2022

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor. Mark M. M. Marvey of the Heritage Partners & Associates, Inc. appeared for the movant/appellee. Counsellor Mamee S. Gongbah of the Liberty Law Firm appeared for the respondent/appellant.

The motion to dismiss the appeal grows out of the final ruling entered by the Debt Court for Montserrado County, in an action of debt instituted by the movant/appellee against the respondent/appellant.

The motion averred that the respondent/appellant announced an appeal from the final ruling of the debt court, subsequently filed its bill of exceptions within the time allowed by statute, but took no further steps to perfect the appeal which deprived the Supreme Court of jurisdiction to hear and determine the appeal on its merits.

The Counsel for the respondent/appellant, by leave of Court, made a submission on the records of Court, as follows:

“At this stage, one of counsels for the respondent begs to inform Your Honors that information reached his office to the effect that the parties have found a common ground to settle the matter decided by the Debt Court, and that counsel has made several efforts to get to the

respondent to ascertain as to whether there was any document prepared to that effect, but unfortunately, when he got to the residence of the respondent, he was informed that the respondent came down with stroke and was taken for treatment in his home town in Nimba County. Counsel therefore requests Your Honors for continuance of two weeks so as to enable him get the documents prepared and signed by the parties. This request is made for the sake of justice, fair play, and not done in bad faith. And respectfully submits."

The Court held as follows:

"The records says as follows...

The Court says ... that while it is not against the production of such documents, this is not the contention now before this Court. The contention is whether this Court can go into the main case and hear the appeal, even though certain procedural defects were clearly committed in the appeal process by the respondent/appellant, such as failure to file an appeal bond and the failure to serve and file a notice of completion of the appeal. The counsel for the respondent/appellant has conceded that his client did not file the appeal bond and did not serve and file a notice of completion of the appeal. Given this concession, it is clear that the appeal is a nullity and is dismissible. The issue of whether or not there has been an out-of-court settlement is therefore not an issue to be decided by this Court.

The Court says that in view of the statement of the respondent's counsel expounded hereinabove, the Court will enter upon the records and make the appropriate decision. RULING RESERVED AND IT IS SO ORDERED. MATTER SUSPENDED."

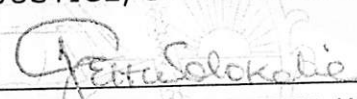
A review of the case file confirms that indeed, the respondent/appellant did not file an appeal bond and did not serve and file a notice of completion of the appeal. This Court, in keeping with law that such failure deprives the Supreme Court of jurisdiction to hear the appeal on its merits, it is hereby

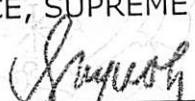
ADJUDGED:

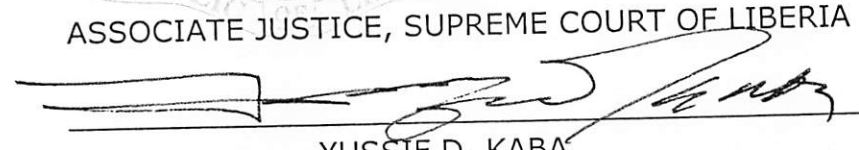
That the motion to dismiss the appeal is hereby granted, and the appeal ordered dismissed as a matter of law. The Clerk is ordered to send a mandate to the Debt Court, commanding the judge presiding therein to resume jurisdiction over this case and enforce its final ruling. Costs are ruled against the respondent/appellant. IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND THE SEAL
OF THE SUPREME COURT OF LIBERIA, THIS
27TH DAY OF JANUARY, A. D. 2022


FRANCIS S. KORKPOR, SR.
CHIEF JUSTICE, SUPREME COURT OF LIBERIA


JAMESETTA HOWARD WOLOKOLIE
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA


SIE-A-NYENE G. YUOH
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA


YUSSIF D. KABA
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

NOTE: Mr. Justice Joseph N. Nagbe, being out of the bailiwick of the Republic, did not participate in the hearing and determination of this case; hence, he did not sign this Judgment.